

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 21-17

OCEAN NETWORK EXPRESS PTE. LTD. AND OCEAN NETWORK
EXPRESS (NORTH AMERICA), INC. - POSSIBLE VIOLATIONS OF 46
U.S.C. § 41102(C)

**RESPONSE OF OCEAN NETWORK EXPRESS PTE. LTD. AND OCEAN NETWORK
EXPRESS (NORTH AMERICA), INC. TO MOTION OF MR. CINQUE TO
WITHDRAW AS COUNSEL FOR BUREAU OF ENFORCEMENT**

Although Mr. Cinque made the instant motion without the requisite consultation, Respondent ONE does not oppose the Motion to Withdraw. Putative Respondent ONE NA is not subject to the jurisdiction of the FMC, and so takes no position on the Motion.

ONE and ONE NA fully expect that, consistent with the requirements of the Administrative Procedure Act, 5 U.S.C. 554(d) and the Commission's regulations, 46 CFR 502.42 and 502.244, Mr. Cinque will have no further involvement in the Commission's or Commissioner Vekich's consideration of this or related proceedings, and will likewise have no further communications with the Bureau of Enforcement with respect to this or related proceedings, but will remain available as a potential target of discovery.

DATED: February 24, 2022

Respectfully submitted,

/s/ Rebecca A. Fenneman

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**ATTORNEYS FOR RESPONDENT
OCEAN NETWORK EXPRESS PTE.
LTD. AND OCEAN NETWORK
EXPRESS (NA), INC.**

CERTIFICATE OF SERVICE

I certify that on the 24 day of February, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEYS FOR THE BUREAU OF ENFORCEMENT:

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